

FEDERAL MARITIME COMMISSION

MARIE S. CAREW d/b/a HOLIDAY
SHIPPING,

Complainant,

-against-

MAERSK LINE A/S and JOHN DOES,

Respondents.

Docket No. 20-17

REPLY MEMORANDUM OF LAW
IN SUPPORT OF MOTION

Garth S. Wolfson

Of Counsel

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TABLE OF CONTENTS

	<i>Page</i>
REPLY ARGUMENT.....	1
POINT I. THE AMENDED COMPLAINT IN THE SDNY ACTION DISCONTINUES ALL OF THE CLAIMS FOR ALL OF THE SHIPMENTS PLACED BEFORE THE COMMISSION IN THE INSTANT COMPLAINT, RENDERING THE MATTER ALTOGETHER MOOT.....	1
POINT II. HOLIDAY'S NEW ASSERTION THAT MAERSK IS STILL IN POSSESSION OF HOLIDAY'S CARGOES IS IRRELEVANT TO THE SHIPPING ACT VIOLATION ALLEGED IN HOLIDAY'S COMPLAINT AND IS DEMONSTRABLY FALSE AS A JUDICIALLY ADMITTED FACT.....	2
POINT III. HOLIDAY'S ARGUMENT THAT VENUE WAS MISPLACED IN THE SDNY IS FOR THE SDNY TO DECIDE AND ALSO ERRONEOUS AS A MATTER OF LAW, IN ANY EVENT.....	3
CONCLUSION.....	7

REPLY ARGUMENT

POINT I. THE AMENDED COMPLAINT IN THE SDNY ACTION DISCONTINUES ALL OF THE CLAIMS FOR ALL OF THE SHIPMENTS PLACED BEFORE THE COMMISSION IN THE INSTANT COMPLAINT, RENDERING THE MATTER ALTOGETHER MOOT.

HOLIDAY's rather grossly untimely opposing papers appear to confirm that all four of the bills of lading alleged in the present proceeding are eliminated from the amended pleading in the SDNY ACTION. So HOLIDAY's concurrent suggestion that MAERSK is withdrawing its claims with regard to only two of the four containers at issue is difficult to fathom. It should be noted, moreover, that HOLIDAY's Exhibit "C" is not, in fact, a copy of MAERSK's Amended Complaint in the SDNY Action, as HOLIDAY claims. It is, rather a copy of MAERSK's original complaint from May of last year and covers all four bills of lading, accordingly. See, Exhibit C to HOLIDAY's Response. The actual proposed Amended Complaint need only be compared with HOLIDAY's FMC Complaint to readily confirm that every bill of lading (all four) are removed. Compare Exhibit A to Wolfson Declaration with Exhibit I to Wolfson Reply Declaration. To reiterate and be perfectly clear, MAERSK is waiving and releasing HOLIDAY from all of MAERSK's claims for demurrage and other charges arising under all four of the bills of lading as to which HOLIDAY alleges a violation in this case. There is thus no basis to continue on with this matter. See, MAERSK's Memorandum of Law in Support of Motion, at Point II.

POINT II.

HOLIDAY'S NEW ASSERTION THAT MAERSK IS STILL IN POSSESSION OF HOLIDAY'S CARGOES IS IRRELEVANT TO THE SHIPPING ACT VIOLATION ALLEGED IN HOLIDAY'S COMPLAINT AND IS DEMONSTRABLY FALSE AS A JUDICIALLY ADMITTED FACT.

HOLIDAY's Complaint makes no mention whatsoever of any purported refusal to deliver the consignments at issue. See, Exhibit A to Wolfson Declaration. On the contrary, the Shipping Act Violation is said have arisen by virtue of the assessment of demurrage while the cargoes were in the possession of Customs and Border Patrol. Id. Again, MAERSK very much disputes HOLIDAY's factual statements in this respect. Contrary to HOLIDAY's unsupported allegations, the demurrage was actually charged only because HOLIDAY failed to timely provide valid documents of title, so the four containers needed to be rolled to the next available vessel. There is not and never was any Shipping Act violation here. But regardless, any purported failure to deliver the containers has no bearing on the claim at issue in this proceeding as defined by the Complaint and is thus little more than a distraction.

The above notwithstanding, it must be noted for the record that the allegation constitutes yet another bald and obvious falsehood. As required under the non-negotiable bills of lading, MAERSK did duly accomplish delivery of all of the shipments. Indeed, HOLIDAY previously confirmed as much under oath in the SDNY Action, complaining that HOLIDAY was hampered in its ability to collect the demurrage from its customers as a result. . See, e.g., Exhibit H, at ¶¶ 20, 34, 41. Of course, had HOLIDAY wanted such leverage, it could have sought negotiable bills of lading, which it did not. But the point for the present purposes is that HOLIDAY quite plainly averred that all of the containers were, in fact, delivered by MAERSK, and that none are being held. Id. Such incontrovertible, intentional misstatements should not be countenanced by the Commission in any circumstance, let alone serve as a basis for impeding the dismissal.

POINT III.

HOLIDAY'S ARGUMENT THAT VENUE WAS MISPLACED IN THE SDNY IS FOR THE SDNY TO DECIDE AND ALSO ERRONEOUS AS A MATTER OF LAW, IN ANY EVENT.

Putting aside the fact that MAERSK has agreed to withdraw its claims with regard to the four bills of lading now before the Commission, and putting aside the fact that any dismissal of the SDNY Action on forum non conveniens grounds would similarly moot the basis for the FMC action, HOLIDAY's argument against venue in SDNY would still be for the SDNY to determine. HOLIDAY moved for this relief at the outset of the SDNY action, and HOLIDAY's motion was denied. As indicated in its responsive papers, HOLIDAY has now untimely refiled that motion, and it is scheduled to be briefed and determined after a decision is reached on MAERSK's pending (and unopposed) motion to amend the complaint. See, Exhibit J to Wolfson Reply Declaration. As previously discussed, therefore, the SDNY is well-ahead of the FMC is dealing with the issues raised and is most competent to determine its own jurisdiction. It would be palpably improper for the FMC to usurp that role in this situation. See, MAERSK's Memorandum of Law, at Point I.

To the extent the Commission is nonetheless interested, MAERSK notes that bill of lading forum selection clauses are presumptively valid and should, generally, be given full effect. Atlantic Marine Constr. Co. v. United States District Court, No. 12-929, 2013 WL 6231157 (U.S. Dec. 3, 2013); Vimar Seguros y Reaseguros, S.A. v. M/V Sky Reefer, 515 U.S. 528, 1995 A.M.C. 1817, 1827 (1995); Carnival Cruise Lines, Inc. v. Shute, 499 U.S. 585, 595, 1991 A.M.C. 1697, 1705 (1991); Mitsubishi Motors Corp. v. Soler Chrysler-Plymouth, Inc., 473 U.S. 614, 629, 105 S. Ct. 3346, 87 L.Ed.2d 444 (1985); M/S Bremen v. Zapata Off-Shore Co., 407 U.S. 1, 15, 92 S. Ct. 1907, 32 L. Ed. 2d 728, 1972 A.M.C. 1407 (1972) ("The expansion of American business and industry will hardly be encouraged if, notwithstanding solemn contracts, we insist on a parochial concept that all disputes must be resolved under our laws and in our courts"); Scherck v. Alberto-Culver Co., 417

U.S. 506, 519, 94 S. Ct. 2449, 41 L. Ed. 2d 290 (1974); see also, J.C.B. Sales Ltd. v. Wallenius Lines, 124 F.3d 586, 592 (2d Cir. 1997); Mitsui & Co. (USA), Inc. v. Mira M/V, 111 F.3d 36, 1997 A.M.C. 2126, 2129 (5th Cir. 1997). Moreover, it is well-settled that a "broad" forum selection clause, governing "all" claims arising under the bill of lading, covers disputes connected to the carriage, even when claims are alleged to fall outside the contract on other theories. See, Thyssen, Inc. v. M/V Markos N, 1999 U.S. Dist. LEXIS 12578, aff'd sub nom., Thyssen, Inc. v. Calypso Shipping Corp., 310 F.3d 102 (2d Cir. 2002), cert. denied, 123 S. Ct. 1573 (2003); Robalen, Inc. v. Generale de Banque, S.A., 1998 U.S. Dist. LEXIS 3931 (S.D.N.Y. Mar. 27, 1998); see also, Fireman's Fund Ins. Co. v. Cho Yang Shipping Co., 131 F.3d 1336, 1998 A.M.C. 583 (9th Cir. 1997); F.D. Import & Export Corp. v. M/V Reefer Sun, 248 F. Supp. 2d 240 (S.D.N.Y. 2002).

The bill of lading terms and conditions will apply even where the actual bill of lading is issued after delivery to the carrier, or never issued at all. Rosario v. H&M Int'l Transp. Serv., Civ. No. 06-824, 2007 U.S. Dist. LEXIS 50825, 10-12 (D.N.J. Jul. 12, 2007)(a bill of lading that a carrier would have issued, but never actually did is the controlling agreement between the parties). See also, Ferrostaal, Inc. v. M/V Sea Phoenix, No. 03 Civ. 0164, 2004 U.S. Dist. LEXIS 27483 (D.N.J. 2004)(“Plaintiff is familiar with the shipping industry, and as an American corporation, should have been aware that the Bills of Lading provide for the application of COGSA in this case”); Oil Tools, Inc. v. Delta S.S. Lines, Inc., 562 F.2d 938, 940 n.3 (5th Cir. 1977) (finding that the carrier's standard bill of lading governed the rights of the parties even though no bill of lading was issued for the subject shipment); Encyclopaedia Britannica v. SS Hong Kong Producer, 422 F.2d 7, 19-20 (2d Cir. 1969)(the terms of a bill of lading constitute part of a shipping contract even if said bill of lading is not issued until after the contract has been entered into); Uncle Ben's Int'l Div. of Uncle Ben's, Inc. v. Hapag-Lloyd Aktiengesellschaft, 855

F.2d 215, 217 (5th Cir. 1988); Baker Oil Tools v. Delta Steamship Lines, Inc., 562 F.2d 938 (5th Cir. 1977)(the terms of the bill of lading that would have issued were applied to the parties because the bill of lading would have incorporated COGSA); Luckenbach S.S. Co. v. American Mills Co., 24 F.2d 704, 705 (5th Cir. 1928)(the terms of a bill of lading issued after the goods are received are binding on the parties).

And, in the event of any inconsistency, the bill of lading's forum-selection agreement, not the service contract's, should generally govern. See, Calchem Corp. v. Activsea USA LLC, No. 06 Civ. 1585, 2007 U.S. Dist. LEXIS 53904, *13, 2007 A.M.C. 1950 (E.D.N.Y. Jul. 25, 2007) ("[B]ecause the bill of lading was issued after the service contract, the bill of lading controls."); TMC Co., Ltd. v. M/V Mosel Bridge, 01 Civ. 7860, 2002 U.S. Dist. LEXIS 14451 (S.D.N.Y. Aug. 7, 2002) ("[T]he forum selection clause in the way bill, which postdated and is flatly inconsistent with that in the service contract, would have superseded the latter with respect to the cargo at issue.").

By their terms, the service contracts govern only claims for breach of their pricing and shipping provisions. The service contracts do not extend to claims for cargo damage, nor do they modify the terms and conditions set forth in the Bills of Lading. The Bills of Lading are the applicable contracts of carriage governing liability for cargo damage, and the service contracts' provisions for New York jurisdiction are therefore inapplicable to the present case.

Regal-Beloit Corp. v. Kawasaki Kisen Kaisha, Ltd., 462 F. Supp. 2d 1098, 1105 (C.D. Cal. 2006).

As HOLIDAY states, the Law and Jurisdiction Clause of the Service Contract called for the application of English law and the exclusive jurisdiction of the English High Court of Justice or, solely at MAERSK's option, at a court where HOLIDAY or any other party falling under the definition of "Merchant" was located. See, Exhibit G to Wolfson Reply Declaration, at ¶ 11; id. at ¶

1.

However, the Service Contract Terms also memorialized that MAERSK's Terms for Carriage "apply to all individual shipments under this Contract," id. at ¶ 2, and provided that, while the Service Contracts' agreed confidential rates would not be overridden by the bill of lading transport document, "in the event any provision in Carrier's Transport Document limits or governs its liability for damages to persons or property (including cargo), delays, misdelivery, or any other provision of the Transport Document mandated by applicable law is or are in conflict with the Contract, the Transport Document shall prevail." Id.

The Law and Jurisdiction clause of the bill of lading transport document specifically provided that, "[f]or shipments to or from the U.S. any dispute shall be governed by U.S. law and the United States District Court for the Southern District of New York is to have exclusive jurisdiction to hear all disputes in respect thereof." See, Exhibit C to Wolfson Declaration, at ¶ 26. Only "[i]n all other cases," was England or, at MAERSK's option, a court where the Merchant was located, selected in conformity with the Service Contract clause. Id.

Accordingly, the forum-selection provision of the MAERSK bills of lading, lacking as they do any terms providing otherwise, should supersede any contrary agreement contained in the Service Contract. The bills of lading were issued pursuant and necessarily subsequent to the Service Contract. And the bills of lading applied to the particular cargoes freighted and transported, rather than just generally to the agreed rates, as in the Service Contract. Moreover, the Service Contract actually specifically provided in no uncertain terms that the bill of lading forum-selection agreement should control. So MAERSK's claims against HOLIDAY are properly before the SDNY pursuant to the broad forum-selection clause contained in the bills of lading consenting to the exclusive jurisdiction of that district.

CONCLUSION.

WHEREFORE, MAERSK urges the Commission to dismiss all claims against MAERSK and award to MAERSK attorney's fees, costs, and such other and further relief as the Court may deem just and proper.

Dated: New York, New York
January 19, 2021

Respectfully submitted,

MAHONEY & KEANE, LLP
Attorneys for Plaintiff

By:



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FEDERAL MARITIME COMMISSION

MARIE S. CAREW d/b/a HOLIDAY
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MAERSK LINE A/S and JOHN DOES,

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Docket No. 20-17

REPLY DECLARATION

I, Garth S. Wolfson, hereby declare as follows:

1. I am a partner with the law firm of Mahoney & Keane, LLP, counsel of record for MAERSK LINE A/S ("MAERSK"), a respondent in the above-captioned proceeding and the plaintiff in the related action now pending before Judge Cronan in the United States District Court for the Southern District of New York under Case Number 19 Civ. 04870 ("SDNY Action").

2. Herewith attached are true copies of the following:

Exhibit G: Terms of the Service Contract between MAERSK, as Carrier, and Petitioner, MARIE S. CAREW d/b/a HOLIDAY SHIPPING ("HOLIDAY"), relied upon by HOLIDAY in the SDNY Action, as well as the instant proceeding;

Exhibit H: Affidavit previously submitted by HOLIDAY in the SDNY Action;

Exhibit I: MAERSK's proposed Amended Complaint in the SDNY Action; and

Exhibit J: Order dated December 31, 2020 in the SDNY Action.

I declare under penalty of perjury that the foregoing statements are true and correct.

Executed: New York, New York
January 19, 2021

Respectfully submitted,

By:



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Service Contract Terms

1. Definitions

"Carrier" means Maersk Line A/S, 50 Esplanaden, 1263 Copenhagen K, Denmark.

"Contract" means the Cover Page, Rate Sheets and these Service Contract Terms, any terms incorporated by reference, and any appendix hereto as may be amended from time to time.

"Maersk Group" means the Carrier and any other company or entity which is directly or indirectly owned or controlled by A.P. Møller – Mærsk A/S and engaged in shipping, transport and/or logistics services.

"Merchant" includes the Shipper, Holder, Consignee, Receiver of the Goods, any Person owning or entitled to the possession of the Goods or of the relevant bill of lading and anyone acting on behalf of such Person.

"Shipper" means the party/parties appearing as shipper on any applicable Transport Document or shipping instruction and anyone acting on behalf of such party/parties.

"Tariff" means the terms and conditions of Carrier's applicable tariffs, freight rate increases applicable to the movement of any commodities, charges, surcharges, rules, obligations, indemnities, regulations, arbitraries/additional or terms), and any subsequent modifications thereto, which are published at www.maersk.com and obtainable from the Carrier upon request.

"Term" means the duration of this Contract, from the Effective Date stated on the Cover page until the Expiration Date stated on the Cover Page.

"Transport Document" means Carrier's bill of lading of lading or sea waybill.

2. Carrier's Terms for Carriage

The Carrier's Terms for Carriage, available at <https://terms.maerskline.com/carriage> ("**Terms for Carriage**") or otherwise obtainable from the Carrier upon request, apply to all individual shipments under this Contract. Attention is drawn to clause 2 in the Terms for Carriage, where Carrier's applicable Tariffs are incorporated. Where reference is made to the Terms for Carriage in this Contract, such reference includes a reference to the Carrier's applicable Tariff.

The rates and charges set forth in the Cover Page or the Rate Sheet shall not be overridden by the Transport Document or the Tariff. However, in the event any provision in Carrier's Transport Document limits or governs its liability for damages to persons or property (including cargo), delays, misdelivery, or any other provision of the Transport Document mandated by applicable law is or are in conflict with the Contract, the Transport Document shall prevail.

3. Freight

Rates, charges and surcharges of whatever nature ("**Freight**") are reflected in the Rate Sheet and the applicable Tariff, as applicable.

Unless Freight is specifically marked as fixed in the governing Tariff or the Rate Sheet is floating and is, therefore, not subject to change during the Term, while all other Freights may be subject to change in accordance with the terms and conditions of the governing tariff in effect on the date on which the carrying vessel is scheduled to depart from the Port of Loading.

4. Charges and Invoice

The Shipper shall be required to pay Carrier amounts required under the Contract or Carrier's Transport Document upon receipt of an invoice. The Shipper shall not require any further documentation from the Carrier prior to payment. If Carrier grants credit to Shipper, Carrier's standard Credit Terms available at <https://terms.maerskline.com/credit> shall apply to such credit.

5. Qualification for Contract Rates

In order for cargo to qualify for the rates and terms set forth in this Contract, the Shipper or affiliated concern must appear as shipper or consignee on the applicable Transport Document. Shipper shall furthermore reference the service contact number upon booking, on each Transport Document and set of shipping instructions for shipments tendered pursuant to the Contract.

6. Trade Regulations

The Shipper is responsible for and warrants its compliance with all applicable laws, rules and regulations, including, but not limited to, the export laws and government regulations of any country to, from, or through which the goods may be carried, including, without limitation the comprehensive economic and trade sanctions of the EU and the USA. To the extent applicable, Shipper warrants that it has obtained all necessary export, re-export, and/or import licenses or permits and the Carrier is not required to obtain any special license or permit in connection with The Carrier's performance hereunder. The Shipper further warrants that it or any party the Shipper endorses any Transport Document to is not a party identified on the U.S. Treasury Department's list of Specially Designated Nationals and Blocked Persons or any other list of prohibited or denied parties maintained by the E.U., U.S.A. or any other country as applicable. The Shipper also warrants that the goods are not intended to be used in the design, development or production of nuclear, chemical or biological weapons. Shipper shall indemnify and hold the Carrier harmless to the full extent of any loss, damage, cost, expense, or liability to the carrier including lost profits, attorney's fees and court costs for any failure or alleged failure of Shipper to comply with applicable export and import laws and regulations of any country. The Carrier assumes no liability to Shipper or any other person for any loss or expense

7. Confidentiality

Except to the extent required by law, or by request of a competent government entity, agency, court or tribunal thereof, or as otherwise necessary to comply with governmental requirements, the terms and conditions of the Contract may not be disclosed to third parties other than to affiliates who agree to be bound by the same confidentiality provisions. The Carrier may disclose to a third party terms and conditions of the Contract for the purposes of performing the Contract or collecting outstanding charges related hereto, including, but not limited, to ocean freight, demurrage and detention. Disclosure of confidential information by persons formerly employed by the Carrier, after their employment with the Carrier, shall not constitute a breach of the Carrier's confidentiality obligations above.

8. Assignment

The Shipper may not assign the Contract, including any or all of its rights, obligations or liabilities hereunder, or otherwise permit any other person or entity, directly or indirectly to utilize services, rates, or other terms provided by the Carrier under the Contract, without the prior written consent of the Carrier. The Carrier may assign or novate the Contract, including any or all of its rights and/or liabilities hereunder to any company or other entity within the Maersk Group by giving public notice or in other way informing the Shipper.

9. No encumbrance

Shipper hereby agrees that a breach of the Contract by Carrier shall not create any lien or encumbrance on any vessel or other equipment owned, operated, leased or chartered by Carrier, its affiliates or its contracting parties. Shipper further hereby expressly and irrevocable waives any right it may have in law, equity, admiralty or otherwise to arrest or otherwise detain any such vessel or other equipment.

10. Severability

Any provision hereof which is prohibited or unenforceable in any jurisdiction shall not invalidate or render unenforceable any other provision of this Contract.

11. Law and Jurisdiction

The Contract shall be governed by and construed in accordance with English law and all disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively and at the Carrier's sole option, the Carrier may commence proceedings against the Merchant at a competent court of a place of business of the Merchant.

12. Abbreviations

An explanation of abbreviations used by the Carrier in the Rate Sheet is available at:

<https://www.maersk.com/solutions/shipping/glossaries>

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IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,
Plaintiff,

Vs.

MARIE S. CAREW D/B/A HOLIDAY SHIPPING,
Defendant.

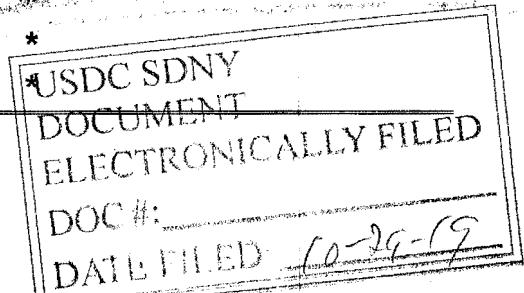
CASE #:

1:19-CV04870

AFFIDAVIT OF MARIE CAREW

Personally appeared before the undersigned attesting officer, duly authorized by law to administer oaths, Marie Carew, who being duly sworn, on oath states that he is over the age of eighteen (18) years, and has personal knowledge of the facts set forth in this Affidavit or such knowledge is as stated herein, and makes this Affidavit for use as evidence for any and all matters in the above-styled action and all purposes authorized by law.

1. My name is Marie Carew, and I am the Defendant named in the herein lawsuit;
2. I manage and direct all activities of Holiday Shipping, at all times, and have reviewed all the documents maintained in the course of business by Holiday Shipping and any other affiliated businesses;
3. At all times, I operated as an ocean transportation intermediary (OTI), and licensed by the Federal Maritime Commission (FMC) to operate in the United States as an ocean freight forwarder (OFF) and non-vessel operating common carrier (NVOCC). 46 C.F.R. § 515.2(m)(1);
4. I have never maintained an office outside of Atlanta, Georgia, and have never had any contact with the State of New York. In 2006, agents of Maersk Line



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A/S, Plaintiff, came to my office in Atlanta to introduce their services, and subsequently signed me to a freight forwarding agreement. Maersk Line A/S and I have renewed this agreement over the years. I have attached the latest agreement Service Contract Terms as Exhibit "A";

5. As an OTI—either an OFF or NVOCC, I am an intermediary between (i) shippers, who seek to export cargo, and (ii) ocean carriers, who physically carry the cargo on their vessels. Landstar Express America, Inc. v. Federal Maritime Commission, 569 F.3d 493 (D.C. Cir. 2009);
6. I initiate direct contact with individuals and companies, specifically, shippers that seek to ship container goods to different parts of the world; arrange transportation services with common carrier; and collect freight monies from shippers to pay common carriers. 46 C.F.R. § 515.2(k);¹
7. My customer base is in and around Atlanta, Georgia;
8. Maersk Line A/S, on the other hand, is an ocean common carrier or a vessel-operating common carrier, and has a global reach with offices in each country that it sends its ships;
9. Again, I do not maintain any offices or business relationships outside the State of Georgia, and have never transacted any business in the State of New York;
10. Maersk Line A/S maintains an ongoing agreement with me, under which Maersk Line A/S transports containers belonging to different shippers that engage my services, and for which I collect monies to pay Maersk Line A/S;
11. The agreement includes a Service Contract Terms and transportation rates;
12. The most current Service Contract Terms is attached, as Exhibit "A";

¹ <https://www.fmc.gov/resources-services/ocean-transportation-intermediaries/>

13. The FMC has jurisdiction over the agreement between Maersk Line A/S and myself, and such agreement is filed with the FMC.² 46 U.S.C. § 40301;
14. Importantly, the agreement between Maersk Line A/S and myself contains a forum selection clause, which is the English High Court of Justice in London. In the alternative, Maersk Line A/S may initiate legal proceedings against the Merchant at a competent court of a place of business of the Merchant. Parties did not designate the United States District Court of the Southern District of New York as a forum for legal proceedings. See Exhibit "A"—the Service Contract Terms ¶ 11, Law and Jurisdiction;
15. For my services, Maersk Line A/S offers special transportation rate to me, and which Maersk Line files with the FMC;
16. At all times referenced in Plaintiff's complaint, I served solely as the ocean freight forwarder or an OTI for each of the consignments;
17. Maersk Line issued each of the bill of lading identified in Plaintiff's Complaint, and I have never prepared any other bill of lading to any of the consignees;
18. On each of bill of lading that Maersk Line issues, it designates the name of the consignee, who is also the merchant or the owner of the consignment, and the document becomes the receipt of ownership;
19. Each of the consignments or containers have a different and independent consignee;
20. Maersk Line knew each of the consignees and dealt directly with the consignees at the port of destination when it voluntarily released the freight and without any information to Defendant;

² <https://www.fmc.gov/resources-services/how-to-file-service-contracts/>

21. Each of the consignees or the representative of the consignees that are associated with the bill of lading referenced in Plaintiff's Complaint resides in and around the City of Atlanta, Georgia or did businesses around the State;
22. These consignees are personal individuals or small scale business individuals with single or infrequent contacts with the maritime industry. I do not have an ongoing relationship with any of the consignees;
23. Maersk Line knew that I have an independent relationship with each of the owners of the consignment or merchants, and my ability to receive payment from a merchant depends upon the custody of the consignment, and whenever Maersk Line releases the consignment to a Merchant, such ability is compromised;
24. Over the course of our relationship and in each of the consignment listed in Plaintiff's Complaint, Maersk Line sets the freight charges that I then present to the consignee or the merchant;
25. Separately from the freight charges, Maersk Line would issue another invoice for other necessary charges, which includes the demurrage charges, and which I similarly pass to the consignee or the merchant. The failure to pay these other charges is the basis of the controversy between parties;
26. Maersk Line does not issue its bill of lading until it collects the freight charges as I was never on credit account with the Carrier;
27. Maersk Line had never opened or allowed me to operate a credit account or letter of credit with the company, and I have to pay for each of the freights before Maersk Line issues its bill of lading;
28. Maersk Line issued each of the bill of lading listed in Plaintiff's Complaint after it had collected the freight charges;

29. The bill of lading entitles the named consignee to the consignment at the port of destination;
30. I have never prepared an in-house bill of lading on any of the consignments listed in Plaintiff's Complaint;
31. Customarily, Maersk Line issues a certified and original bill of lading that I forward to the Consignee, and a copy of the bill of lading, which I keep for my internal records;
32. At all times referenced in Plaintiff's complaint, I have paid all the freight charges for each container referenced in the Maersk Line A/S's complaint, before Maersk Line released the bill of lading;
33. At the port of destination, Maersk Line retains custody of the consignment and releases the consignment to the consignee;
34. Maersk Line released each of the consignment enumerated in its Complaint to the consignee at its own discretion and without any instruction from me;
35. Beginning in 2014, ports around the continental United States started experiencing congestion, in part, due to government inspection. Containers, then, spend longer time at port terminals before they are released to the carriers for loading and transportation;
36. As a result of the longer time that a container stays at the different port terminals before inspection and final clearing by the Customs and Border Patrol, (CBP), owners of the port terminals, some of which are privately owned, charge demurrage for each of the extra days, which has become prohibitive;
37. Maersk Line receives invoice from the terminal owners after the ship sails out of the ports, and subsequently issues a supplementary invoice for the demurrage charges;

38. The specific issue concerning the prohibitive demurrage charges is currently before the FMC, who has extended the public comment session of the rule-making procedure of the Agency³;
39. Again, these prohibitive charges that accrue due to the demurrage and detention charges, mostly from the Georgia Ports Authority and other independent terminal port operators, are what Maersk Line has attempted to collect from me;
40. Sometimes, Maersk Line does not send the supplementary invoice for the demurrage and detention until it has released the consignment to the consignee at the port of destination;
41. Notwithstanding, the practice of Maersk Line to release the consignment to the consignee at the port of destination eliminates any opportunity for me to collect the money from the consignee;
42. Further, the Georgia Ports Authority, the other independent terminal port operators, and other affected agencies reside or maintain offices in Georgia;
43. Specifically, these demurrage charges are the basis of the dispute between myself and Maersk Line A/S;

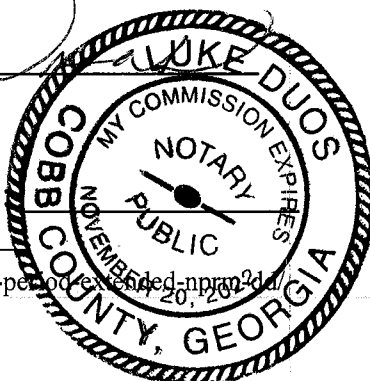
FURTHER, AFFIANT SAITH NAUGHT

Marie Carew
Marie Carew

Sworn to and subscribed before me
This 25th day of October, 2019

Luke Duos
Notary Public

My commission expires



³ <https://www.fmc.gov/comment-period-extended-nprn2d/>

2



Service Contract Terms

1. Definitions

"Carrier" means Maersk Line A/S, 50 Esplanaden, 1263 Copenhagen K, Denmark.

"Contract" means the Cover Page, Rate Sheets and these Service Contract Terms, any terms incorporated by reference, and any appendix hereto as may be amended from time to time.

"Maersk Group" means the Carrier and any other company or entity which is directly or indirectly owned or controlled by A.P. Møller – Mærsk A/S and engaged in shipping, transport and/or logistics services.

"Merchant" includes the Shipper, Holder, Consignee, Receiver of the Goods, any Person owning or entitled to the possession of the Goods or of the relevant bill of lading and anyone acting on behalf of such Person.

"Shipper" means the party/parties appearing as shipper on any applicable Transport Document or shipping instruction and anyone acting on behalf of such party/parties.

"Tariff" means the terms and conditions of Carrier's applicable tariffs, freight rate increases applicable to the movement of any commodities, charges, surcharges, rules, obligations, indemnities, regulations, arbitraries/additionals or terms), and any subsequent modifications thereto, which are published at www.maersk.com and obtainable from the Carrier upon request.

"Term" means the duration of this Contract, from the Effective Date stated on the Cover page until the Expiration Date stated on the Cover Page.

"Transport Document" means Carrier's bill of lading of lading or sea waybill.

2. Carrier's Terms for Carriage

The Carrier's Terms for Carriage, available at <https://terms.maerskline.com/carriage> ("**Terms for Carriage**") or otherwise obtainable from the Carrier upon request, apply to all individual shipments under this Contract. Attention is drawn to clause 2 in the Terms for Carriage, where Carrier's applicable Tariffs are incorporated. Where reference is made to the Terms for Carriage in this Contract, such reference includes a reference to the Carrier's applicable Tariff.

The rates and charges set forth in the Cover Page or the Rate Sheet shall not be overridden by the Transport Document or the Tariff. However, in the event any provision in Carrier's Transport Document limits or governs its liability for damages to persons or property (including cargo), delays, misdelivery, or any other provision of the Transport Document mandated by applicable law is or are in conflict with the Contract, the Transport Document shall prevail.

3. Freight

Rates, charges and surcharges of whatever nature ("**Freight**") are reflected in the Rate Sheet and the applicable Tariff, as applicable.

Unless Freight is specifically marked as fixed in the governing Tariff or the Rate Sheet is floating and is, therefore, not subject to change during the Term, while all other Freights may be subject to change in accordance with the terms and conditions of the governing tariff in effect on the date on which the carrying vessel is scheduled to depart from the Port of Loading.

4. Charges and Invoice

The Shipper shall be required to pay Carrier amounts required under the Contract or Carrier's Transport Document upon receipt of an invoice. The Shipper shall not require any further documentation from the Carrier prior to payment. If Carrier grants credit to Shipper, Carrier's standard Credit Terms available at <https://terms.maerskline.com/credit> shall apply to such credit.

5. Qualification for Contract Rates

In order for cargo to qualify for the rates and terms set forth in this Contract, the Shipper or affiliated concern must appear as shipper or consignee on the applicable Transport Document. Shipper shall furthermore reference the service contact number upon booking, on each Transport Document and set of shipping instructions for shipments tendered pursuant to the Contract.

6. Trade Regulations

The Shipper is responsible for and warrants its compliance with all applicable laws, rules and regulations, including, but not limited to, the export laws and government regulations of any country to, from, or through which the goods may be carried, including, without limitation the comprehensive economic and trade sanctions of the EU and the USA. To the extent applicable, Shipper warrants that it has obtained all necessary export, re-export, and/or import licenses or permits and the Carrier is not required to obtain any special license or permit in connection with The Carrier's performance hereunder. The Shipper further warrants that it or any party the Shipper endorses any Transport Document to is not a party identified on the U.S. Treasury Department's list of Specially Designated Nationals and Blocked Persons or any other list of prohibited or denied parties maintained by the E.U., U.S.A. or any other country as applicable. The Shipper also warrants that the goods are not intended to be used in the design, development or production of nuclear, chemical or biological weapons. Shipper shall indemnify and hold the Carrier harmless to the full extent of any loss, damage, cost, expense, or liability to the carrier including lost profits, attorney's fees and court costs for any failure or alleged failure of Shipper to comply with applicable export and import laws and regulations of any country. The Carrier assumes no liability to Shipper or any other person for any loss or expense

arising from Shipper's failure to comply with applicable laws.

7. Confidentiality

Except to the extent required by law, or by request of a competent government entity, agency, court or tribunal thereof, or as otherwise necessary to comply with governmental requirements, the terms and conditions of the Contract may not be disclosed to third parties other than to affiliates who agree to be bound by the same confidentiality provisions. The Carrier may disclose to a third party terms and conditions of the Contract for the purposes of performing the Contract or collecting outstanding charges related hereto, including, but not limited, to ocean freight, demurrage and detention. Disclosure of confidential information by persons formerly employed by the Carrier, after their employment with the Carrier, shall not constitute a breach of the Carrier's confidentiality obligations above.

8. Assignment

The Shipper may not assign the Contract, including any or all of its rights, obligations or liabilities hereunder, or otherwise permit any other person or entity, directly or indirectly to utilize services, rates, or other terms provided by the Carrier under the Contract, without the prior written consent of the Carrier. The Carrier may assign or novate the Contract, including any or all of its rights and/or liabilities hereunder to any company or other entity within the Maersk Group by giving public notice or in other way informing the Shipper.

9. No encumbrance

Shipper hereby agrees that a breach of the Contract by Carrier shall not create any lien or encumbrance on any vessel or other equipment owned, operated, leased or chartered by Carrier, its affiliates or its contracting parties. Shipper further hereby expressly and irrevocable waives any right it may have in law, equity, admiralty or otherwise to arrest or otherwise detain any such vessel or other equipment.

10. Severability

Any provision hereof which is prohibited or unenforceable in any jurisdiction shall not invalidate or render unenforceable any other provision of this Contract.

11. Law and Jurisdiction

The Contract shall be governed by and construed in accordance with English law and all disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively and at the Carrier's sole option, the Carrier may commence proceedings against the Merchant at a competent court of a place of business of the Merchant.

10/1/2019

Service Contract Terms | Maerskline Terms

12. Abbreviations

An explanation of abbreviations used by the Carrier in the Rate Sheet is available at:

<https://www.maersk.com/solutions/shipping/glossaries>

Maersk Line © 2013

Rate Sheet Id	TP-301526
Customer Name	HOLIDAY SHIPPING
Last Acceptance Date	01-Nov-2019
Contract Number	4227744
Carrier	MAERSK LINE



**MAERSK
LINE**

<u>Quote acceptance</u>	This quotation shall be considered accepted by the Merchant if the Merchant confirms its acceptance in writing. Provided that if the Merchant does not provide its acceptance in writing, then the Merchant shall also be deemed to have accepted the quotation by the following actions: (1) verbally agreeing to the quotation, or (2) making a booking or tendering a shipment to Carrier covered by this quotation. For trades subject to the US Shipping Act, the parties shall, in the case of (1), subsequently confirm this agreement by agreeing to a writing that will be filed with the FMC as the service contract amendment.
<u>Liability</u>	It is a condition of placing a booking under this quotation that you agree and accept that you will be deemed a "Merchant" as defined in the Maersk Line's Terms for Carriage and as such will be responsible for all the obligations and liabilities of the shipper, whether disclosed or not. Any subsequent nomination of a shipper or other party in relation to the booking shall be subject to our discretionary acceptance. In nominating a shipper or other party in relation to the booking you warrant that you have authority to legally bind the nominated shipper or other party relating to the booking, as applicable, and, should that not be the case, you will assume full liability and shall indemnify the carrier for any and all loss suffered or cost incurred as a consequence of the absence of such authority.
<u>Carrier Terms</u>	Unless otherwise specified herein, this quotation, bookings and carriage are subject to Carrier's Terms for Carriage, including in particular its choice of law and jurisdiction, available at: https://terms.maerskline.com/Carriage the additional Service Contract Terms available at: http://terms.maerskline.com/service and the terms for Detention and Demurrage available at: http://terms.maerskline.com/d_and_d
<u>Value Protect</u>	If a quotation includes Value Protect, it shall be subject to the Value Protect Terms available at: https://terms.maersk.com/valueprotect
<u>Booking</u>	Booking requests against this rate quotation are subject to space and equipment availability at such time (and/or at time of shipment). Scheduled routing, if provided in this quotation, is indicative only and the Carrier does not undertake that the Goods shall be carried by the scheduled routing. The quote provided and Maersk Line's ability to transport this shipment are contingent upon Maersk Line's review of all shipment details prior to confirming the booking (including but not limited to all parties to the transaction, commodity description, container type and cargo weight) and Maersk Line's confirmation that the shipment is in compliance with applicable international regulations.
<u>Cargo Specifics</u>	This quote will only apply to the weight and type of cargo declared. If not specified differently rates included in this ratesheet are for standard cargo weight (18 ton)

FAK (Freight All Kind) commodity group quotations cannot be used for the follow commodities: <table border="1"> <thead> <tr> <th>HS Code</th> <th>Comm. Name</th> </tr> </thead> <tbody> <tr> <td>001801</td> <td>Diplomatic Cargo</td> </tr> <tr> <td>001802</td> <td>Diplomatic Cargo_Non US flag</td> </tr> <tr> <td>001803</td> <td>Diplomatic Cargo_US flag</td> </tr> <tr> <td>003401</td> <td>Project cargo....</td> </tr> <tr> <td>003402</td> <td>Project cargo_Non US flag</td> </tr> <tr> <td>003403</td> <td>Project cargo_US flag</td> </tr> <tr> <td>003601</td> <td>Relief goods</td> </tr> </tbody> </table> This quotation shall not be valid if it applies to: (a) Any cargo being moved pursuant to a US government-related program, which includes but is not limited to US Military, USAID, International Department of Development, US State Department, US Department of Agriculture, US Government Household Goods and US Foreign Military Sales cargo, (b) Project Cargo which is construction, building, manufacturing materials or supplies or any other materials for a named project, or (c) any cargo that must be carried on an US Flagged vessel <u>as required by Cargo Preference Laws.</u> This quote is not valid for hazardous or pharmaceutical cargo, unless otherwise specified. Maersk Line's process for acceptance of hazardous cargo is subject to the acceptance policy of involved ports & vessels and for pharmaceutical cargo is subject to the pharmaceutical acceptance policy and process of Maersk Line. As a consequence of a requirement from the International Maritime Organization (IMO), the shipper is responsible for the verification of the gross mass of a container carrying cargo prior to stowage on board. Therefore, Maersk Line reserves the right to charge a fee in cases where the shipper's lack of compliance to this regulatory requirement results in additional costs to Maersk Line.	HS Code	Comm. Name	001801	Diplomatic Cargo	001802	Diplomatic Cargo_Non US flag	001803	Diplomatic Cargo_US flag	003401	Project cargo....	003402	Project cargo_Non US flag	003403	Project cargo_US flag	003601	Relief goods	Invoice This quotation is subject to (i) all applicable charges, surcharges, fees, adjustment factors (including local ones) rules, exceptions and exclusions pursuant to the Maersk Line tariffs (ii) and such additional charges as indicated by this quotation which may include, but are not limited to, terminal handling charges, port fees, overweight charges, documentation fees, customs charges, seasonal charges such as peak season surcharges, congestion and emergency risk surcharges. Any charge other than ocean base freight in this quotation is <u>indicative only.</u> The invoice issued will be based on information received on the shipping instruction provided by the merchant and the first booking confirmation from the carrier. Exchange rates are indicative only and may therefore differ from the exchange rates on the invoice.
HS Code	Comm. Name																
001801	Diplomatic Cargo																
001802	Diplomatic Cargo_Non US flag																
001803	Diplomatic Cargo_US flag																
003401	Project cargo....																
003402	Project cargo_Non US flag																
003403	Project cargo_US flag																
003601	Relief goods																

	Rates, charges, surcharges etc. applicable to the shipment will be determined by the Price Calculation Date (PCD). The PCD will be the date indicated in the booking confirmation, except for FMC regulated trades, where the PCD will be the date on which Maersk Line A/S or one of its authorised agent(s) takes possession of the last container listed on the transport document. FMC regulated trades are shipments exiting or entering a port in the United States, Guam, US Virgin Islands, American Samoa or Puerto Rico ("US") where 1) the Carrier takes possession of the cargo in the US whether in the Port of Loading or at the place of receipt, or 2) the Carrier tenders the cargo for delivery in the US whether in the Port of Discharge or at the place of delivery These rates are unaffected by, and do not affect, any tariff notified, published or filed in accordance with local regulatory requirements, eg. government induced tax.
<u>NAM / China specific rules</u>	For trades subject to the US Shipping Act or the China Maritime Regulations, quotations or surcharges that vary from the Maersk Line Tariff shall not be binding on Maersk Line unless included in a service contract or service contract amendment that has been filed with the Federal Maritime Commission (FMC) or the Shanghai Shipping Exchange (SSE), as applicable.
<u>Useful links:</u>	
<u>FAQ</u>	https://www.maersk.com/help/support#/ekb
<u>Inland tariff rates</u>	https://www.maersk.com/
<u>Detention & Demurrage tariffs</u>	https://www.maersk.com/local-information

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,

Plaintiff,

-against-

MARIE S. CAREW t/a HOLIDAY SHIPPING,

Defendant.

19 Civ. 4870 (JPC)

AMENDED COMPLAINT

PLEASE TAKE NOTICE that Plaintiff, MAERSK LINE A/S (“MAERSK”), by its attorneys, Mahoney & Keane, LLP, as and for a Complaint against Defendant, MARIE S. CAREW t/a HOLIDAY SHIPPING (“HOLIDAY”), alleges, upon information and belief, as follows:

1. This is a claim within the meaning of Rule 9(h) of the Federal Rules of Civil Procedure and falls under the Court’s admiralty and maritime and federal question jurisdiction pursuant to 28 U.S.C. §§ 1331 and 1333 in that it involves a claim for the breach of a maritime contract.

2. Plaintiff, MAERSK, is a corporation duly organized and existing pursuant to the laws of foreign country, with offices and place of business located at 50 Esplaneden, DK-1098, Copenhagen K, Denmark.

3. Defendant, HOLIDAY, is sole proprietorship licensed with the Federal Maritime Commission as a non-vessel owning common carrier and ocean transportation intermediary with offices and a place of business located at 1153 Willingham Drive, East Point, GA 30344.

4. The United States District Court for the Southern District of New York is the proper venue for this action pursuant to the Law and Jurisdiction clause contained in the governing Bills of Lading.

5. Plaintiff sues on its own behalf and as agent and trustee on behalf of any other party who may now have or hereinafter acquire an interest in this action.

AS AND FOR A FIRST CAUSE OF ACTION

6. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "5" as if specifically set forth herein at length.

7. On or about January of 2015, February through May of 2016, December of 2016, March through April of 2017, August of 2017, October of 2017, March through November of 2018, January of 2019, and March of 2019, and at all times relevant herein, MAERSK, as "Carrier", and HOLIDAY, as "Shipper", entered into and were parties to bills of lading numbered 566942411, 576254394, 955061776, 955153015, 955728620, 955824174, 955831738, 956105215, 956209532, 956737002, 956751241, 957569046, 957569049, 957849148, 958115327, 958348126, 958632718, 958647967, 958706912, 958706920, 958706950, 958961505, 959064153, 959298172, 959384493, 959384639, 959404137, 959417057, 959533182, 959666400, 960011124, 960739844, 960930389, 961519364, 961640116, 961748325, 962479448, 963694372, 963721565, 963741113, 963807713, 964047680, 964354949, 964510571, 964671670, 964765517, 964830164, 964841064, 964897195, 964948943, 965003598, 965069141, 965077376, 965121979, 965389181, 965448503, 965477262, 965485698, 965640166, 965640202, 965690272, 965690350, 965751148, 965786726, 965786728, 965796238, 965885826, 965965069, 965975136, 965975140, 966009481, 966017145, 966078843, 966088619, and 966088624 for the ocean carriage of containerized cargoes of motor vehicles, auto parts, personal effects, household, and used machinery and other goods from United States ports to African ports.

8. Plaintiff duly performed all duties and obligations required to be performed by Plaintiff in connection with the goods.

9. Defendant wrongfully, willfully, negligently and/or fraudulently breached the terms of the subject agreements by, inter alia, failing to pay for basic ocean freight, detention, demurrage, per diem charges, inland haulage, low Sulphur surcharges, congestion fees, shifting expenses, bunker fees, port dues, documentation fees, and other associated and incidental customs duties, fees, taxes, costs, charges, and expenses accrued on the containers, all as duly invoiced by Plaintiff to Defendant.

10. As a result of Defendant's breach of the agreements, Plaintiff has incurred, and will continue to incur, costs and expenses for which Defendant is liable under the terms of the governing contracts and at law.

11. Plaintiff has placed Defendant on notice of its claim that Defendant has breached the subject agreements and violated Plaintiff's rights under the law.

12. Despite Plaintiff's repeated demands, Defendant has failed to pay the Plaintiffs' damages due and owing under the agreements and at law.

13. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$146,313.00, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "13" as if specifically set forth herein at length.

15. Defendant has an account stated with Plaintiff.

16. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$146,313.00, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "16" as if specifically set forth herein at length.

18. Defendant has been unjustly enriched at Plaintiff's expense, and Plaintiff is entitled to restitution from Defendant in the amount of \$146,313.00, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A FOURTH CAUSE OF ACTION

19. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "18" as if specifically set forth herein at length.

20. Plaintiff is due from Defendant the quantum meruit of Plaintiff's services.

WHEREFORE, Plaintiffs pray that judgment be entered in favor of Plaintiffs for an amount exceeding \$146,313.00, together with interest, costs, fees, including reasonable attorneys' fees, and disbursements; that Court process be issued against the Defendant; and that Plaintiffs be granted such other and further relief as the Court may deem just and proper.

Dated: New York, New York
December __, 2020

MAHONEY & KEANE, LLP
Attorneys for Plaintiff

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December 31, 2020

VIA ECF

Hon. John P. Cronan
United States District Judge
United States District Court
Southern District of New York
500 Pearl Street
New York, New York 10007

Re: **Case No. 19 Civ. 4870 (JPC)**
Maersk Line A/S v.
Marie S. Carew t/a Holiday Shipping
Our File No. 12/4479

Honorable Sir,

We represent the Plaintiff, MAERSK LINE A/S (“MAERSK”), in the above-referenced action and are constrained to write once more, because we yesterday received notice of the electronic filing of yet another motion to dismiss by Defendant MARIES S. CAREW d/b/a HOLIDAY SHIPPING (“HOLIDAY”). (Docket No. 48). As with Holiday’s last motion to dismiss (Docket No. 40), HOLIDAY failed to first request a pre-motion conference, as required by Your Honor’s Individual Rules. Both of HOLIDAY’s recent motions mirror the contents of HOLIDAY’s original motion seeking dismissal for lack of jurisdiction and improper venue on the same grounds. (Docket Nos. 20-22). Again, to the extent the Court is interested in MAERSK’s views on the merits of the motions, MAERSK would refer the Court to MAERSK’s prior opposing papers (Docket No. 22), as well as MAERSK’s related filings in the earlier motion practice (Docket Nos. 14-16 and 24), accordingly. Both sides’ threshold motions were previously denied without prejudice by Judge Koeltl. (Docket Entry No. 29).

Your Honor will recall that, on December 11, 2020, the parties appeared for a conference, wherein the Court ruled quite clearly that a briefing schedule on both parties’ dispositive motions would be set after MAERSK’s pending motion to amend the Complaint has been decided. As HOLIDAY’s latest filing would appear to run afoul of the Court’s directives on the matter, we write to request the Court’s confirmation that those prior advices still stand with regard to the newest motion, and that piecemeal, redundant, and, to some extent, potentially soon mooted submissions need not follow at this time.

We thank the Court for its consideration.

Respectfully submitted,

MAHONEY & KEANE, LLP

By: s/ Garth S. Wolfson
Garth S. Wolfson

cc (via e-mail):

Maries S. Carew
mhl11@aol.com

Yinka Omole, Esq.
ylawfirm@gmail.com

The Court confirms that the directions set at the December 11, 2020 conference are operative in this matter. Plaintiff, at this time, is not required to file a response to Defendant's motions filed on December 4, 2020 (Dkt. 40), and December 30, 2020 (Dkt. 48). Once the Court decides Plaintiff's Motion to Amend the Complaint (Dkt. 44) it will set a briefing schedule for Defendant's Motion to Dismiss and Plaintiff's anticipated Motion for Summary Judgment. The Court further reminds Defendant that opposition to Plaintiff's Motion to Amend the Complaint is due on January 8, 2021.

SO ORDERED.

Date: December 31, 2020
New York, New York



JOHN P. CRONAN
United States District Judge